

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2636 OF 2014

Md. Rabi Ullah being represented by his
constituted Attorney, Razia Begum

----- Defendant-Petitioner

=Versus=

Md. Sahinur Begum and others

----- Plaintiff-Opposite Parties

Mr. Muntasir Uddin Ahmed

----- For the Petitioner

Mr. Feroj Alam with

Mrs. Sarker Samema Sultana

----- For the Opposite Parties

Heard on: 26.07.2017

Judgment on: 27.07.2017

At the instance of the present defendant-petitioner Md. Rabi Ullah being represented by his constituted Attorney, Razia Begum leave was granted and the Rule was issued in the following terms:

“এই মামলা অপরপক্ষের প্রতি কারণ দর্শানি পূর্বক রুল জারী করা হইল, কেন গাজীপুরের বিজ্ঞ জেলা জজ আদালত এর দেওয়ানী ২০/৩০ নং রিভিশনি প্রচারিত ০৪/০৫/২০১৪ তারিখের তর্কিত রায় এবং আদেশ রদ ও রহিত করা হইবে না, যে রায় ও আদেশমূলে গাজীপুরের বিজ্ঞ সিনিয়র সহকারী জজ, প্রথম আদালত এর দেওয়ানী ৭৪৬/২০০৮ নং মোকদ্দমায় প্রচারিত ২৬/০২/২০১৩ তারিখের রায় এবং আদেশ দৃঢ়করণ মামলা রিভিশনটি নামঞ্জুর হইয়াছে এবং দরখাস্তকারী অত্র আদালত এর বিবেচনায় আর যে সকল প্রতিকার পাইত্র পাবেন তাহার ও আদেশ কেন দেওয়া হইবে না।”

The relevant facts for disposal of the present Rule, inter-alia, are that the present plaintiff opposite parties as the plaintiffs filed the Civil Suit No. 746 of 2008 in the court learned Senior Assistant Judge, 1st Court, Gazipur for declaration that the deed dated 26.07.1983 executed by and between Haji Mohammad Lal Mah and Ahsan Ullah was not binding upon the plaintiffs. The said suit is pending. During the pendency of the suit the present plaintiff opposite parties, filed an application for amendment of the plaint under Order 6 Rule 17 of the Code of Civil Procedure which was allowed by the trial court on 26.02.2013. Being aggrieved the present defendant petitioner filed a revisional application being Civil Revision No. 20 of 2013 in the Court of learned District Judge, under Section 115 (2) of the Code of Civil Procedure which was discharged on 04.05.2014. This revisional application has been filed under Section 115(4) challenging the legality of the impugned judgment and order dated 04.05.2014 and leave was granted and a Rule was issued thereupon.

Mr. Muntasir Uddin Ahmed, the learned Advocate appearing for the petitioner submits that the application for amendment of the plaint filed by the plaintiff opposite parties would certainly change the nature and character of the suit as the contents of the application is beyond the real question in controversy between the parties as such the court cannot determine the matters in dispute. The learned Advocate also submits that the learned trial court as the Assistant Judge cannot entertain any application which would change beyond

his pecuniary jurisdiction under the law, therefore, the matter should be dealt with by a competent court to deal with the suit as well as the matter of application for amendment.

The Rule has been opposed by the present opposite party Nos. 1 and 2, Mr. Feroz Alam, the learned Advocate appearing with the learned Advocate Sarker Samema Sultana, submits that both the courts below concurrently found in favour of the present opposite parties for amending the plaint as prayed for therefore no interference is called for from this court. He also submits that by the impugned order the learned District Judge has already sent the matter to the competent court being the learned Additional District Judge, Gazipur for trial after realizing the matter of contents of the amendment petition.

Considering the above submissions made by the learned Advocates and also considering the revisional application filed in this court, it appears to me that the suit was filed by the present opposite parties for declaring a deed as not binding upon them. When the suit is pending the present opposite parties as the plaintiffs filed an application for amendment of the plaint containing the following amendments:

যেভাবি আরজি সংশোধন হইবিঃ

ক) মোকদ্দমার হেডিং এর “দলিল void ঘোষনার মোকদ্দমা” শব্দ গুলি সাফ কাটা যাইবে তদস্থলে “ঘাষনামূলক ও এজমালী সম্পত্তি বন্টনের মোকদ্দমা” শব্দগুলি বসিবে।

খ) বাদী মোকদ্দমার হেডিং এর পরের লাইনের তায়দাদ মং এর কলাম্বি “৪৭৫০০” সংখ্যাটি সাফ কাটা যাইবি তদস্থলি “২,৯৭,৩৫,২০০” সংখ্যাটি বসিবি।

গ) আরজির ২ নং প্যারার ৩ নং লাইনর “তিন” সংখ্যাটি সাফ কাটা যাইবি তদস্থলি “দুই” শব্দটি বসিবে এবং উক্ত ৩ লাইনের

“আবতুর রহমান” নামটি সাফ কাটা যাইবে। উক্ত ২ নং দফার ৪ নং লাইন “স্বামী” শব্দের পূর্বে “দ্বিতীয়” শব্দটি বসিবে।

ঘ) আরজীর ২ নং প্যারার ৬ নং লাইনের “করিন” শব্দটি সাফ কাটা যাইবে তদস্থলি “করিলি প্রত্যক ছেলি ১৯^২/_৫ শতাংশ, স্বামী ১৫^১/_৪ শতাংশ, প্রত্যক মেয় ৯^৭/_{১০} শতাংশ করিয়া এজমালীত মালিক ও ভোগ দখলকার নিয়ত হয়” কথা ও বাক্যগুলি বসিবে।

From the above prayer for amendment would certainly change the jurisdiction of a court to deal with such kind of matter.

I also consider that the learned trial court should not have entertained an application for amendment beyond his pecuniary jurisdiction. In view of the above the learned trial court committed serious error of law by passing the judgment and order dated 26.02.2013. The learned revisional court below should have examined the nature of the application and the jurisdiction of the trial court before passing any order after considering the legality of the learned trial court. Instead, the learned revisional court below entertained unlawfully the application and passed the judgment and order on 04.05.2014.

I therefore consider that both the court below committed an error of law, therefore, the judgment and order passed by the courts below are to be set aside. I am therefore inclined to dispose of the Rule with the following direction.

Accordingly, the Rule is disposed of.

The judgment and order passed by the learned Assistant Judge as well as the judgment and order passed by the learned District Judge are hereby set aside.

The learned Senior Assistant Judge, Court No. 1, Gazipur is hereby directed to transfer the file of the Civil Suit No. 746 of 2008 to the learned District Judge, Gazipur, Dhaka along with the application for amendment of the plaint filed under Order 6 Rule 17 by the present plaintiffs because of the contents of the application for amendment and beyond jurisdiction of the learned Assistant Judge at the relevant time but not at present time.

The learned District Judge is also hereby directed to consider the amendment petition afresh and to register the suit after compliance of the all formal and legal requirements for filing a suit in the learned District Judge.